

**CHAPTER xix.**

An Act to confer further powers on the River
Wear Commissioners and for other purposes.

[25th May 1939.]

WHEREAS the River Wear Commissioners (hereinafter referred to as "the Commissioners") were incorporated by the Wear Navigation and Sunderland Dock Act 1859 (hereinafter referred to as "the Act of 1859") and under the provisions of the Wear Navigation and Sunderland Dock (Consolidation and Amendment) Act 1922 (whereby the Act of 1859 and certain other enactments were repealed and the provisions thereof were re-enacted with amendments) and of the Wear Navigation and Sunderland Dock Act 1938 are (inter alia) the port and harbour authority for the port and harbour of Sunderland :

22 & 23 Vict.
c. lvii.

12 & 13
Geo. 5.
c. lxxxiv.

1 & 2 Geo. 6.
c. lxxxiv.

And whereas by the Sunderland Dock Act 1855 the Sunderland Dock Company were authorised (inter alia) within certain limits specified in that Act to lay out excavate and construct and from time to time alter repair and maintain a graving dock with certain subsidiary works in the said port and harbour and the said company constructed the said graving dock which is now known and is hereinafter referred to as the No. 1 Graving Dock :

18 & 19 Vict.
c. cxxviii.

And whereas by the Act of 1859 the undertaking and property of the said company (including the No. 1 Graving Dock) together with their powers rights and privileges were transferred to and vested in the Commissioners :

And whereas the dimensions of the No. 1 Graving Dock are insufficient for the accommodation of vessels of large size and it is expedient that the No. 1 Graving Dock should be enlarged :

And whereas T. W. Greenwell and Company Limited (a company engaged in the repairing of ships in the said port and harbour) have agreed at their own expense to enlarge the No. 1 Graving Dock provided that a lease thereof for a term of years is granted to them by the Commissioners and it is expedient that the Commissioners should be empowered to grant such lease :

And whereas the enlargement of the No. 1 Graving Dock may extend beyond the limits specified in the said Act of 1855 in which event the enlargement cannot be carried out without further statutory authority :

And whereas it is expedient that as provided by this Act the requisite powers for the enlargement of the No. 1 Graving Dock should be conferred on the Commissioners with liberty to provide in the lease to be granted by them as aforesaid for the exercise of the said powers by the lessees :

And whereas the Commissioners under general powers exerciseable by them have granted to T. W. Greenwell and Company Limited for terms which have not yet expired certain leases of land belonging to the Commissioners for the construction on part thereof of another graving dock (which has been constructed) and it is proposed to merge those leases in the lease of the No. 1 Graving Dock to be granted under the powers of this Act :

And whereas it is expedient that the provisions contained in this Act with reference to the matters aforesaid and the other provisions so contained should be enacted :

And whereas the purposes of this Act cannot be effected without the authority of Parliament :

And whereas a plan and sections showing the line and levels of the work by this Act authorised and the lands in or through which the same may be made and a book of reference to that plan containing the names of the owners and lessees or reputed owners and lessees

and of the occupiers of the said lands have been deposited with the town clerk of the county borough of Sunderland and are in this Act respectively referred to as the deposited plan sections and book of reference :

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. This Act may be cited for all purposes as the *Wear Navigation and Sunderland Dock Act 1939.* Short title.

2. The Lands Clauses Acts (so far as the same are applicable for the purposes of and not varied by or inconsistent with this Act) are hereby incorporated with this Act with the following exception and modification (that is to say) :— Incorporation of Lands Clauses Acts.

(a) Section 127 of the Lands Clauses Consolidation Act 1845 (relating to the sale of superfluous lands) is not incorporated with this Act; 8 & 9 Vict. c. 18.

(b) The bond required by section 85 of the Lands Clauses Consolidation Act 1845 shall be under the seal of the Commissioners and shall be sufficient without the addition of the sureties mentioned in that section.

3. In this Act the following words and expressions have the meanings hereby assigned to them respectively unless there be something in the subject or context repugnant to such construction (namely) :— Interpretation.

“ the Commissioners ” means the River Wear Commissioners ;

“ the company ” means T. W. Greenwell and Company Limited and includes (subject to the provisions of any lease granted under the powers of this Act) their successors or assigns ;

“ the No. 1 Graving Dock ” means the graving dock constructed under the powers of the Sunderland Dock Act 1855 whether as existing at the date of the passing of this Act or as varied under the powers of this Act according as the context requires ;

“ the Act of 1922 ” means the Wear Navigation and Sunderland Dock (Consolidation and Amendment) Act 1922;

“ the consolidated revenue ” means all moneys arising from the rates and dues by the Act of 1922 authorised to be taken (other than the rate or duty referred to in section 79 (Rates on goods for protecting piers) of that Act) and all other sums of money receivable by the Commissioners other than moneys properly applicable to capital purposes.

Extension
and enlarge-
ment of
No. 1
Graving
Dock.

4. Subject to the provisions of this Act the Commissioners may construct and maintain in the county borough of Sunderland in the line and situation and according to the levels shown on the deposited plan and sections the work hereinafter described and may enter upon take and use all or any of the lands delineated upon the deposited plan and described in the deposited book of reference which they may require for that purpose.

The work hereinbefore referred to is the following :—

A variation of the No. 1 Graving Dock consisting of the lengthening widening and deepening thereof.

Subsidiary
works.

5. Subject to the provisions of this Act the Commissioners may for or in connection with the work by this Act authorised make and maintain or remove or alter such cuts approaches gates caissons bridges sluices culverts quays walls fences fence walls houses workshops steam and other engines hydraulic electric and other appliances plant machinery apparatus cranes sheers railways tramways roads sewers drains and other works and conveniences as may be necessary or convenient for or connected with or ancillary to the construction maintenance and use of the said work or may require to be removed or altered for the purposes thereof Provided that any electric apparatus made and maintained under this section shall be so constructed maintained and used as to prevent interference with any telegraphic line (as defined by the Telegraph Act 1878) belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

41 & 42 Vict.
c. 76.

6. Subject to the provisions of this Act the Commissioners may in the execution of the work by this Act authorised deviate laterally from the line or situation thereof shown on the deposited plan to any extent within the limits of deviation shown thereon and vertically from the levels shown on the deposited sections to any extent not exceeding twenty feet upwards or downwards Provided that no deviation either lateral or vertical below high-water mark shall be made without the consent in writing of the Board of Trade.

Deviation.

7. The Commissioners may appropriate for the purposes of the work by this Act authorised any land foreshore or other property belonging to or vested in them or forming part of their dock property or undertaking.

Appropriation of lands for purposes of work.

8. If there is any omission misstatement or wrong description of any lands or of the owners lessees or occupiers of any lands shown on the deposited plan or specified in the deposited book of reference the Commissioners after giving ten days' notice to the owners lessees and occupiers of the lands in question may apply to two justices having jurisdiction in the county borough of Sunderland for the correction thereof and if it appears to the justices that the omission or misstatement or wrong description arose from mistake they shall certify the same accordingly and they shall in their certificate state the particulars of the omission and in what respect any such matter is misstated or wrongly described and such certificate or a copy thereof shall be deposited with the town clerk of the said county borough and shall be kept by such town clerk with the other documents to which the same relates and thereupon the deposited plan and book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Commissioners to take the lands and execute the work in accordance with the certificate.

Correction of errors in deposited plan and book of reference.

9. The powers of the Commissioners for the compulsory purchase of lands under this Act shall cease on the first day of October one thousand nine hundred and forty-two.

Limit of time for compulsory purchase of lands.

Work to
form part
of under-
taking of
Commis-
sioners.

10. Except during the period for which any lease granted renewed or extended under the powers of this Act is subsisting the work by this Act authorised (as and when constructed) shall for all purposes (including the making levying and recovering of rates and charges) be deemed to form part of the No. 1 Graving Dock.

For protec-
tion of
Sunderland
Gas Com-
pany and
Sunderland
and South
Shields
Water
Company.

11.—(1) Nothing in this Act shall alter or affect the rights and powers (if any) as existing at the date of the passing of this Act of the Sunderland Gas Company and the Sunderland and South Shields Water Company (each of which companies is in this section referred to as “the undertakers”) or either of them. Provided that in any case in which in consequence of the foregoing reservation of rights and powers the exercise by the Commissioners of any of their powers under this Act would be prevented or rendered more difficult or costly by their inability to remove or alter the position of any pipes or apparatus of either of the undertakers the undertakers owning such pipes or apparatus shall forthwith after receiving notice in writing from the Commissioners requiring them so to do alter the level or position of such pipes or apparatus to such extent as the Commissioners may reasonably require and the Commissioners shall repay to the undertakers making any such alteration the amount of the cost reasonably incurred by those undertakers in so doing.

(2) If by any agreement or lease entered into with or granted to the company under the powers of this Act provision is made for the exercise by the company of any such powers as are referred to in subsection (2) of the section of this Act of which the marginal note is “As to lease of No. 1 Graving Dock to company” subsection (1) of this section shall be read and have effect as if the company had been named therein instead of the Commissioners and as if the expression “the powers of the Commissioners” were substituted therein for the expression “their powers.”

Applica-
tion of
certain

12. The following provisions of the Act of 1922 shall apply with reference to the work by this Act

authorised as if those provisions were enacted in this Act :—

provisions
of Act of
1922.

Section 159 (Works below high-water mark to be subject to approval of Board of Trade);

Section 160 (Lights on works during construction);

Section 161 (Permanent lights on works);

Section 162 (Provision against danger to navigation);

Section 163 (Abatement of work abandoned or decayed);

Section 164 (Survey of works by Board of Trade);

Section 165 (Cables pipes or wires under or across tidal waters).

13.—(1) Notwithstanding anything contained in the Act of 1922 the Commissioners may enter into and carry into effect agreements with the company for and may grant and from time to time renew or extend a lease to the company for such term of years and upon and subject to such terms and conditions as they may think fit of the No. 1 Graving Dock and of land adjacent thereto.

As to lease
of No. 1
Graving
Dock to
company.

(2) Any such agreement or lease may provide for the exercise by the company of all or any of the powers conferred upon the Commissioners by the following sections of this Act (namely):—

Section 4 (Extension and enlargement of No. 1 Graving Dock);

Section 5 (Subsidiary works);

Section 6 (Deviation);

on such terms and conditions as may be contained in such agreement or lease and it shall be lawful for the company to exercise the said powers in the same manner and to the same extent as such powers might have been exercised by the Commissioners.

(3) In addition to any other matters provided for in any such agreement or lease as aforesaid and without prejudice to the generality of the foregoing

provisions of this section such agreement or lease may contain provisions with reference to all or any of the following matters (that is to say):—

The vesting in or imposition upon the company of such of the powers and obligations of the Commissioners in reference to the No. 1 Graving Dock as may be provided in the agreement or lease;

The imposition of obligations upon the company with respect to the repair and upkeep of the No. 1 Graving Dock;

The exercise by the company of any powers of alteration of addition to and re-arrangement of the No. 1 Graving Dock exerciseable by the Commissioners;

The transfer by the Commissioners to and the exercise by the company of all or any of the rights and powers of the Commissioners necessary or desirable to enable the company to carry on work and use the No. 1 Graving Dock other than the right of the Commissioners to levy tolls rates and duties for the use of such dock;

The inclusion in any such agreement or lease of any lands or the site of any graving dock already leased to the company by the Commissioners and the merger or cancellation of any existing lease or leases granted by the Commissioners to the company.

(4) The Commissioners and the company may at any time and from time to time enter into and carry into effect agreements for—

(a) varying the terms and conditions of any lease granted renewed or extended by the Commissioners under this section; or

(b) the surrender of any such lease upon and subject to such terms and conditions as may be agreed between them and either with or without the grant of a new lease in substitution therefor.

Any new lease granted by the Commissioners under this subsection may from time to time be renewed

extended varied or surrendered in like manner as any lease granted under subsection (1) of this section.

14. Notwithstanding anything in the Act of 1922 or any enactment incorporated therewith or in this Act but subject to any provisions contained in any lease of the No. 1 Graving Dock granted renewed or extended by the Commissioners under this Act no person shall be entitled during the continuance of any such lease to use the said dock otherwise than by agreement with the company and upon and subject to such terms and conditions as may be agreed between such person and the company.

As to user
of No. 1
Graving
Dock
during
lease.

15. All costs charges and expenses of and incidental to the preparing applying for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Commissioners out of the consolidated revenue and may if they think fit be spread over a period of years.

Costs of
Act.

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Ch. xix.

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Sunderland Dock Act, 1939.*

2 & 3 GEO. 6.

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